

23STCV23861 23STCV23861

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-07-08

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Case Number: 23STCV23861 Hearing Date: July 8, 2026 Dept: 510

No.

12 - George Gamble, et al. v. Randolph L. Turrow, et al.

Defendant

Ian Roven's Motion for Relief from Waiver of Discovery Objections

Defendant Ian Roven moves for relief

from his waiver of objections to Plaintiff Nancy Gamble's form interrogatories, special interrogatories, requests for production, and requests for admission.

As

an initial matter, the Court notes that Defendant's motion for relief from waiver of objections to four different sets of discovery constitutes an improper omnibus motion. Defendant is reminded to file all motions separately and pay the required filing fee for each in the future. Defendant is ordered to pay the clerk \$180 (\$60 per motion for three motions) forthwith.

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responding party who does not serve a timely response to discovery waives all objections to those requests. (Code Civ. Proc., §§ 2030.290(a), 2031.300(a), 2033.280(a).) The court may grant relief from that waiver when the responding party (1) "has subsequently served a response that is in substantial compliance with" the statutes governing that method of discovery and (2) "[t]he party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect." (Code Civ. Proc., §§ 2030.290(a)(1) & (2), 2031.300(a)(1) & (2), 2033.280(a)(1) & (2).) Defendant meets both criteria.

First,

Defendant served responses to form interrogatories, special interrogatories, requests for production, and requests for admission on April 6, 2026, four days after the agreed-upon deadline. (Alcumbrac Decl., ¶ 10.) Defendant then served supplemental responses to the discovery requests on May 15, 2026. (Id., ¶ 15; see Exs. T, U, V, and W.) Plaintiff argues that the responses are not in substantial compliance because they include waived objections. However, inclusion of objections in these discovery responses does not make Defendant's responses not Code-compliant under these circumstances. If this were true, the relief afforded from waiver of objections would be rendered meaningless. The Court has reviewed Defendant's responses and finds them to be in substantial compliance.

Second,

Defendant's failure to serve a timely response resulted from mistake, inadvertence, or excusable neglect. Defense counsel declares that their office miscalendared the response deadline to Monday, April 6, 2026, instead of Thursday, April 2, 2026. (Alcumbrac Decl., ¶ 13.) Under the circumstances, Defense counsel's mistake was excusable. Denying this motion would prejudice Defendant in a way that does not serve the interests of justice. The Court will grant relief from Defendant's waiver of objections.

Disposition

Defendant

Ian Roven's motion for relief from his waiver of objections to Plaintiff Nancy Gamble's form interrogatories, special interrogatories, requests for production, and requests for admission are granted.

Defendant

Ian Roven is ordered to pay \$180 to the clerk of the court as unpaid filing fees for three motions for relief from waiver of objections.